

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS
STATE OF CALIFORNIA**

**In the Matter of the Motion for Immediate Reversal of
Suspension of:**

BRETT HALL, Moving Party

v.

HEMET UNIFIED SCHOOL DISTRICT

OAH No. 2025061002

**ORDER GRANTING MOTION FOR IMMEDIATE REVERSAL OF
SUSPENSION**

Administrative Law Judge (ALJ) Patrice De Guzman Huber, Office of Administrative Hearings, State of California, heard this matter by videoconference on July 11, 2025, from Sacramento, California. Dyland Griffith, Esq., represented moving party Brett Hall, who was present. Marie Naguib, Esq., represented Hemet Unified School District (District).

Procedural Background

On June 17, 2025, the Governing Board of the District approved a Statement of Charges to dismiss Mr. Hall based on alleged: (1) immoral conduct; (2) dishonesty; (3) unsatisfactory performance; (4) evident unfitness for service; and (5) persistent

violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of public schools. On the same date, the District gave notice to Mr. Hall of the Governing Board's decision and placed him on immediate suspension without pay under Education Code section 44939.

On June 26, 2025, Mr. Hall filed a Motion for Immediate Reversal of Suspension pursuant to Education Code section 44939, subdivision (c)(1). Mr. Hall contends the District has not alleged a sufficient basis for immediate unpaid status because, Mr. Hall argues, the allegations in the Statement of Charges do not rise to the level of immoral conduct. On July 1, 2025, the District filed its opposition to Mr. Hall's motion.

On July 11, 2025, the parties presented oral argument.

Analysis

Education Code section 44939, subdivision (b), states, in pertinent part, that a school district may immediately suspend a permanent employee who has been charged with immoral conduct. Under subdivision (c)(1), such an employee may file a motion for immediate reversal of suspension, and the court's review "shall be limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

The ALJ has considered the written submissions of the parties and oral argument. Based upon a review of the Statement of Charges, the District's allegations, if true, are insufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b).

ORDER

GOOD CAUSE HAVING BEEN ESTABLISHED, the Motion for Immediate Reversal of Suspension is GRANTED. The District's immediate suspension of Mr. Hall is REVERSED. The District shall immediately return Mr. Hall to paid status. The District shall make Mr. Hall whole for any lost wages, benefits, and compensation within 14 days after service of this Order. (Ed. Code, § 44939, subd. (c)(5).)

DATE: July 15, 2025



PATRICE DE GUZMAN HUBER

Administrative Law Judge

Office of Administrative Hearings